

for any other cause, as with one Person representing the whole Country, such Deputies, having a place and time of meeting assigned them, are there, and at that time, a Body Politique, representing every Subject of that Dominion; but it is onely for such matters as shall be propounded unto them by that Man, or Assembly, that by the Sovereign Authority sent for them; and when it shall be declared that nothing more shall be propounded, nor debated by them, the Body is dissolved. For if they were the absolute Representative of the people, then were it the Sovereign Assembly; and so there would be two Sovereign Assemblies, or two Sovereigns, over the same people; which cannot consist with their Peace. And therefore where there is once a Sovereignty, there can be no absolute Representation of the people, but by it. And for the limits of how farre such a Body shall represent the whole People, they are set forth in the Writing by which they were sent for. For the People cannot choose their Deputies to other intent, than is in the Writing directed to them from their Sovereign expressed.

Private Bodies Regular, and Lawfull, are those that are constituted without Letters, or other written Authority, saving the Lawes common to all other Subjects. And because they be united in one Person Representative, they are held for Regular; such as are all Families, in which the Father, or Master ordereth the whole Family. For he obligeth his Children, and Servants, as farre as the Law permiteth, though not further, because none of them are bound to obedience in those actions, which the Law hath forbidden to be done. In all other actions, during the time they are under domestique government, they are subject to their Fathers, and Masters, as to their immediate Sovereigns. For the Father, and Master being before the Institution of Common-wealth, absolute Sovereigns in their own Families, they lose afterward no more of their Authority, than the Law of the Common-wealth taketh from them.

A Regular Private Body, Lawfull, as a Family.

Private Bodies Regular, but Unlawfull, are those that unite themselves into one person Representative, without any publique Authority at all; such as are the Corporations of Beggars, Theeves and Gipsies, the better to order their trade of begging, and stealing; and the Corporations of men, that by Authority from any forraign Person, unite themselves in anothers Dominion, for the easier propagation of Doctrines, and for making a party, against the Power of the Common-wealth.

Private Bodies Regular, but Unlawfull.

Irregular Systemes, in their nature, but Leagues, or sometimes meer concurrence of people, without union to any particular designe, not by obligation of one to another, but proceeding onely from a similitude of wills and inclinations, become Lawfull, or Unlawfull, according to the lawfulness, or unlawfulness of every particular mans designe therein: And his designe is to be understood by the occasion.

Systemes Irregular, such as are Private Leagues

The Leagues of Subjects, (because Leagues are commonly made for mutuall defence,) are in a Common-wealth (which is no more than a League of all the Subjects together) for the most part unnecessary, and favour of unlawfull designe; and are for that cause Unlawfull,

lawfull, and go commonly by the name of Factions, or Conspiracies. For a League being a connexion of men by Covenants, if there be no power given to any one Man, or Assembly (as in the condition of meer Nature) to compell them to performance, is so long onely valid, as there ariseth no just cause of distrust : and therefore Leagues between Common-wealths, over whom there is no humane Power established, to keep them all in awe, are not onely lawfull, but also profitable for the time they last. But Leagues of the Subjects of one and the same Common-wealth, where every one may obtain his right by means of the Sovereign Power, are unnecessary to the maintaining of Peace and Justice, and (in case the designe of them be evill, or Unknown to the Common-wealth) unlawfull. For all uniting of strength by private men, is, if for evill intent, unjust ; if for intent unknown, dangerous to the Publique, and unjustly concealed.

Secret Cabals.

If the Sovereign Power be in a great Assembly, and a number of men, part of the Assembly, without authority, consult a part, to contrive the guidance of the rest ; This is a Faction, or Conspiracy unlawfull, as being a fraudulent seducing of the Assembly for their particular interest. But if he, whose private interest is to be debated, and judged in the Assembly, make as many friends as he can ; in him it is no Injustice ; because in this case he is no part of the Assembly. And though he hire such friends with mony, (unlesse there be an expresse Law against it,) yet it is not Injustice. For sometimes, (as mens manners are,) Justice cannot be had without mony ; and every man may think his own cause just, till it be heard, and judged.

Fends of private Families.

In all Common-wealths, if a private man entertain more servants, than the government of his estate, and lawfull employment he has for them requires, it is Faction, and unlawfull. For having the protection of the Common-wealth, he needeth not the defence of private force. And whereas in Nations not thoroughly civilized, severall numerous Families have lived in continuall hostility, and invaded one another with private force ; yet it is evident enough, that they have done unjustly ; or else that they had no Common-wealth.

Factions for Government.

And as Factions for Kindred, so also Factions for Government of Religion, as of Papists, Protestants, &c. or of State, as Patricians, and Plebeians of old time in *Rome*, and of Aristocraticalls and Democraticalls of old time in *Greece*, are unjust, as being contrary to the peace and safety of the people, and a taking of the Sword out of the hand of the Sovereign.

Concourse of people, is an Irregular Systeme, the lawfulnessse, or unlawfulnessse, whereof dependeth on the occasion, and on the number of them that are assembled. If the occasion be lawfull, and manifest, the Concourse is lawfull ; as the usuall meeting of men at Church, or at a publique Shew, in usuall numbers : for if the numbers be extraordinarily great, the occasion is not evident ; and consequently he that cannot render a particular and good account of his being amongst them, is to be judged conscious of an unlawfull, and tumultuous designe. It may be lawfull for a thousand men, to joyn in a Petition to be delivered to a Judge, or Magistrate ; yet if a thousand

and men come to present it, it is a tumultuous Assembly; because there needs but one or two for that purpose. But in such cases as these, it is not a set number that makes the Assembly Unlawfull, but such a number, as the present Officers are not able to suppress, and bring to Justice.

When an unusuall number of men, assemble against a man whom they accuse; the Assembly is an Unlawfull tumult; because they may deliver their accusation to the Magistrate by a few, or by one man. Such was the case of St. Paul at Ephesus; where Demetrius, and a great number of other men, brought two of Pauls companions before the Magistrate, saying with one Voyce, *Great is Diana of the Ephesians*; which was their way of demanding Justice against them for teaching the people such doctrine, as was against their Religion, and Trade. The occasion here, considering the Lawes of that People, was just; yet was their Assembly Judged Unlawfull, and the Magistrate reprehended them for it, in these words, * *If Demetrius and the other work-men can accuse any man, of any thing, there be Pleas, and Deputies, let them accuse one another. And if you have any other thing to demand, your case may be judged in an Assembly Lawfully called. For we are in danger to be accused for this dayes sedition, because, there is no cause by which any man can render any reason of this Concourse of People.* Where he calleth an Assembly, whereof men can give no just account, a Sedition, and such as they could not answer for. And this is all I shall say concerning Systemes, and Assemblies of People, which may be compared (as I said,) to the Similar parts of mans Body; such as be Lawfull, to the Muscles; such as are Unlawfull, to Wens, Biles, and Apostemes, engendred by the unnaturall conflux of evill humours.

CHAP. XXIII.

Of the PUBLIQUE MINISTERS of Sovereign Power.

IN the last Chapter I have spoken of the Similar parts of a Commonwealth: In this I shall speak of the parts Organicall, which are Publique Ministers.

A PUBLIQUE MINISTER, is he, that by the Sovereign, (whether a Monarch, or an Assembly,) is employed in any affaires, with Authority to represent in that employment, the Person of the Commonwealth. And whereas every man, or assembly that hath Sovereignty, representeth two Persons, or (as the more common phrase is) has two Capacities, one Naturall, and another Politique; (as a Monarch, hath the person not onely of the Commonwealth, but also of a man; and a Sovereign Assembly hath the Person not onely of the Commonwealth, but also of the Assembly); they that be servants to them in their naturall Capacity, are not Publique Ministers; but those onely that serve them in the Administration of

*Publique
Minister
Who.*

the Publique businesse. And therefore neither Ushers, nor Sergeants, nor other Officers that waite on the Assembly, for no other purpose, but for the commodity of the men assembled, in an Aristocracy, or Democracy; nor Stewards, Chamberlains, Cofferers, or any other Officers of the household of a Monarch, are Publique Ministers in a Monarchy.

*Ministers
for the gene-
rall Admini-
stration.*

Of Publique Ministers, some have charge committed to them of a generall Administration, either of the whole Dominion, or of a part thereof. Of the whole, as to a Protector, or Regent, may be committed by the Predecessor of an Infant King, during his minority, the whole Administration of his Kingdome. In which case, every Subject is so far obliged to obedience, as the Ordinances he shall make, and the commands he shall give be in the Kings name, and not inconsistent with his Sovereigne Power. Of a part, or Province; as when either a Monarch; or a Sovereign Assembly, shall give the generall charge thereof to a Governour, Lieutenant, Præfect or Vice-Roy: And in this case also, every one of that Province, is obliged to all he shall doe in the name of the Sovereign, and that not incompatible with the Sovereigns Right. For such Protectors, Vice-Roys, and Governors, have no other right, but what depends on the Sovereigns Will; and no Commission that can be given them, can be interpreted for a Declaration of the will to transerre the Sovereignty, without expresse and perspicuous words to that purpose. And this kind of Publique Ministers resembleth the Nerves, and Tendons that move the severall limbs of a body naturall.

*For speciall
Admini-
stration, as
for Oecono-
my.*

Others have speciall Administration; that is to say, charges of some speciall businesse, either at home, or abroad: As at home, First, for the Oeconomy of a Common-wealth, They that have Authority concerning the *Treasure*, as Tributes, Impositions, Rents, Fines, or whatsoever publique revenue, to collect, receive, issue, or take the Accounts thereof, are Publique Ministers: Ministers, because they serve the Person Representative, and can doe nothing against his Command, nor without his Authority: Publique, because they serve him in his Politicall Capacity.

Secondly, they that have Authority concerning the *Militia*; to have the custody of Armes, Forts, Ports; to Levy, Pay, or Conduct Souldiers; or to provide for any necessary thing for the use of war, either by Land or Sea, are publique Ministers. But a Souldier without Command, though he fight for the Common-wealth, does not therefore represent the Person of it; because there is none to represent it to. For every one that hath command, represents it to them only whom he commandeth.

*For Instru-
ction of the
People.*

They also that have authority to teach, or to enable others to teach the people their duty to the Sovereign Power, and instruct them in the knowledge of what is just, and unjust, thereby to render them more apt to live in godlinesse, and in peace amongst themselves, and resist the publique enemy, are Publique Ministers: Ministers, in that they doe it not by their own Authority, but by anothers; and Publique, because they doe it (or should doe it) by

no Authority, but that of the Sovereign. The Monarch, or the Sovereign Assembly only hath immediate Authority from God, to teach and instruct the people; and no man but the Sovereign, receiveth his power *Dei gratiâ* simply; that is to say, from the favour of none but God: All other, receive theirs from the favour and providence of God, and their Sovereigns; as in a Monarchy *Dei gratiâ & Regis*; or *Dei providentiâ & voluntate Regis*.

They also to whom Jurisdiction is given, are Publique Ministers. For in their Seats of Justice they represent the person of the Sovereign; and their Sentence, is his Sentence; For (as hath been before declared) all Judicature is essentially annexed to the Sovereignty; and therefore all other Judges are but Ministers of him, or them that have the Sovereign Power. And as Controversies are of two sorts, namely of *Fact* and of *Law*; so are Judgements, some of *Fact*, some of *Law*: And consequently in the same controversy, there may be two Judges, one of *Fact*, another of *Law*.

For Judicature.

And in both these controversies, there may arise a controversy between the party Judged, and the Judge; which because they be both Subjects to the Sovereign, ought in Equity to be Judged by men agreed on by consent of both; for no man can be Judge in his own cause. But the Sovereign is already agreed on for Judge by them both, and is therefore either to heare the Cause, and determine it himself, or appoint for Judge such as they shall both agree on. And this agreement is then understood to be made between them divers wayes; as first, if the Defendant be allowed to except against such of his Judges, whose interest maketh him suspect them, (for as to the Complaynant he hath already chosen his own Judge,) those which he excepteth not against, are Judges he himself agrees on. Secondly, if he appeale to any other Judge, he can appeale no further; for his appeale is his choice. Thirdly, if he appeale to the Sovereign himself, and he by himself, or by Delegates which the parties shall agree on, give Sentence; that Sentence is finall: for the Defendant is Judged by his own Judges, that is to say, by himself.

These properties of just and rationall Judicature considered, I cannot forbear to observe the excellent constitution of the Courts of Justice, established both for Common, and also for Publique Pleas in *England*. By Common Pleas, I meane those, where both the Complaynant and Defendant are Subjects: and by Publique, (which are also called Pleas of the Crown) those, where the Complaynant is the Sovereign. For whereas there were two orders of men, whereof one was Lords, the other Commons; The Lords had this Priviledge, to have for Judges in all Capitall crimes, none but Lords; and of them, as many as would be present; which being ever acknowledged as a Priviledge of favour, their Judges were none but such as they had themselves desired. And in all controversies, every Subject (as also in civill controversies the Lords) had for Judges, men of the Country where the matter in controversy lay; against which he might make his exceptions, till at last twelve

men without exception being agreed on, they were Judged by those twelve. So that having his own Judges, there could be nothing alledged by the party, why the sentence should not be finall. These publique persons, with Authority from the Sovereign Power, either to Instruct, or Judge the people, are such members of the Common-wealth, as may fitly be compared to the organs of Voice in a Body naturall.

For Execution.

Publique Ministers are also all those, that have Authority from the Sovereign, to procure the Execution of Judgements given; to publish the Sovereigns Commands; to suppress Tumults; to apprehend, and imprison Malefactors; and other acts tending to the conservation of the Peace. For every act they doe by such Authority, is the act of the Common-wealth; and their service, answerable to that of the Hands, in a Bodie naturall.

Publique Ministers abroad, are those that represent the Person of their own Sovereign, to forraign States. Such are Ambassadors, Messengers, Agents, and Heralds, sent by publique Authoritie, and on publique Businesse.

But such as are sent by Authoritie only of some private partie of a troubled State, though they be received, are neither Publique, nor Private Ministers of the Common-wealth; because none of their actions have the Common-wealth for Author. Likewise, an Ambassador sent from a Prince, to congratulate, condole, or to assist at a solemnity, though the Authority be Publique; yet because the businesse is Private, and belonging to him in his naturall capacity; is a Private person. Also if a man be sent into another Country, secretly to explore their counsels, and strength; though both the Authority, and the Businesse be Publique; yet because there is none to take notice of any Person in him, but his own; he is but a Private Minister; but yet a Minister of the Common-wealth; and may be compared to an Eye in the Body naturall. And those that are appointed to receive the Petitions or other informations of the People, and are as it were the publique Eare, are Publique Ministers, and represent their Sovereign in that office.

Counsellors without other employment then to Advice are not Publique Ministers.

Neither a Counsellor (nor a Councell of State, if we consider it with no Authority of Judicature or Command, but only of giving Advice to the Sovereign when it is required, or of offering it when it is not required, is a Publique Person. For the Advice is addressed to the Sovereign only, whose person cannot in his own presence, be represented to him, by another. But a Body of Counsellors, are never without some other Authority, either of Judicature, or of immediate Administration: As in a Monarchy, they represent the Monarch, in delivering his Commands to the Publique Ministers: In a Democracy, the Councell, or Senate propounds the Result of their deliberations to the people, as a Councell; but when they appoint Judges, or heare Causes, or give Audience to Ambassadors, it is in the quality of a Minister of the People: And in an Aristocracy the Councell of State is the Sovereign Assembly it self; and gives counsell to none but themselves.